

Poorveeben Vinaybhai Trivedi vs Vinaybhai Rajeshbhai Trivedi on 5 December, 2023

NEUTRAL

C/SCA/6953/2019

ORDER DATED: 05/12/2023

undefi

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD
R/SPECIAL CIVIL APPLICATION NO. 6953 of 2019

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POORVEEBEN VINAYBHAI TRIVEDI

Versus

VINAYBHAI RAJESHBHAI TRIVEDI

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Appearance:

MR TUSHAR L SHETH(3920) for the Petitioner(s) No. 1

MR Z L KHAN(7966) for the Respondent(s) No. 1

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CORAM:HONOURABLE MR. JUSTICE DEVAN M. DESAI

Date : 05/12/2023

ORAL ORDER

1. Heard learned advocate Mr. Tushar L. Sheth for the petitioner. Learned advocate Mr. Z. L. Khan appearing for the respondent is absent. Perused the record.

2. By invoking powers under Articles 226 and 227 of the Constitution of India, the prayers sought for by the petitioners are for quashing and setting aside the order dated 15.7.2017 passed in Review Application No.1 of 2016 and the order dated 5.12.2014 passed below Exh.1 in HMP No.59 of 2014 (Old HMP No.48 of 2013) under Section 13(1)(ia)(ib) of the Hindu Marriage Act, NEUTRAL CITATION C/SCA/6953/2019 ORDER DATED: 05/12/2023 undefined 1955 for decree of divorce and further prayed to direct the learned Principal Judge, Family Court, Jamangar to pass a decree of divorce in HMP Case No.59 of 2014 in view of Purshis Exh.25.

3. Learned advocate for the petitioner has submitted that, present petitioner has filed HMP No.59 of 2014 (Old HMP Case No.48 of 2013) under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955 for decree of divorce. During the pendency of the said petition, a compromise was arrived at between the petitioner and the respondent whereby the registered divorce deed was executed between the parties which was registered at Sr. No.6454 on 29.11.2014 before the Sub Registrar, Jamnagar - 1 H-LKT. Thereafter, the petitioner and respondent moved a joint Purshis Exh.25 before the learned Principal District Judge, Jamangar in Family Suit No.58 of NEUTRAL CITATION

C/SCA/6953/2019 ORDER DATED: 05/12/2023 undefined 2014 and declared that a decree of divorce may be passed on the basis of the present Purshis in view of the fact that the compromise has been arrived at out of the Court between the parties. The said Purshis was came to be recorded by the learned Principal Judge, Family Court, Jamnagar on 5.12.2014 and the order below Exh.1 came to be passed whereby the decree was refused on the ground that the compromise is not filed in the proper proforma.

4. It is further submitted that pursuant to the compromise on 6.12.2014, the present petitioner also withdrew the application under the Domestic Violence Act which was filed by the petitioner against the respondent and the respondent - husband also withdrew HMP Case No.60 of 2013 filed under Section 9 of the Hindu Marriage Act. The respondent - husband who had filed Civil NEUTRAL CITATION C/SCA/6953/2019 ORDER DATED: 05/12/2023 undefined Misc. Application No.11 of 2018 before the learned Principal Judge, Family Court, Jamnagar invoking the provisions of Guardians and Wards Act, 1890 for custody of the minor Rashi, came to be dismissed for default on 27.1.2021. It is also submitted that since both the parties had amicably settled the dispute and by way of a registered divorce deed, the respondent - husband did not pursue the said Civil Application and allowed Civil Misc. Application No.11 of 2018 to be dismissed for default.

5. It is submitted that the parties have acted upon the withdrawal Purshis and are residing separately and there are no relationship of husband and wife amongst them since 2010. Pursuant to the registered divorce deed, the custody of daughter Rashi is with the petitioner - wife and she is looking after the daughter Rashi.

NEUTRAL CITATION C/SCA/6953/2019 ORDER DATED: 05/12/2023 undefined It is further submitted that the petitioner - wife has not claimed any maintenance for herself as well as for the minor daughter since 2010. Thus, the sum and substance of the learned advocate for the petitioner is that since the parties have resolved the issue and acted upon the statement made in the Purshis Exh.25 and also acted upon the registered divorce deed and more particularly, other litigations have been unconditionally withdrawn by both the parties.

6. Having considered the submissions of the learned advocate for the petitioner, it is an undisputed fact that petitioner and respondent have filed the joint Purshis before the learned Principal Judge, Family Court, Jamnagar in Family Suit No.59 of 2014 whereby the parties have declared that they have no objection if the decree of divorce is passed. However, the learned Principal Judge, NEUTRAL CITATION C/SCA/6953/2019 ORDER DATED: 05/12/2023 undefined Family Court, Jamnagar has taken hypercritical view and did not draw a decree of divorce. This is an error on the part of the learned Principal Judge, Family Court, Jamnagar. It is to be observed that when the parties have declared before the learned Court that they do not wish to proceed with the matter and a decree of divorce may pass, unless and until such declaration is against the provisions of law, then, the learned Court cannot refuse to pass decree. It is the duty of the learned trial Court to pass decree on the basis Purshis Exh.25. The learned trial Court can record the statements of parties regarding admission of contents of Purshis and upon such admission, statements, decree can be passed. The Review Application which was filed by the petitioner bearing No.1 of 2016 was wrongly rejected by the learned Principal Judge, Family Court, Jamnagar.

NEUTRAL CITATION C/SCA/6953/2019 ORDER DATED: 05/12/2023 undefined

7. Thus, in the peculiar set of facts, this petition is allowed. Thereby, order dated 15.7.2017 passed in Review Application No.1 of 2016 & order dated 5.12.2014 passed below Exh.1 in HMP No.59 of 2014 (Old HMP No.48 of 2013) are hereby quashed and set aside. Further the learned Principal Judge, Family Court, Jamnagar is directed to draw a decree of divorce in accordance with the Purshis Exh.25. The learned Principal Judge, Family Court, Jamnagar is also permitted to satisfy himself regarding contents of the Purshis by calling upon the parties before him, if he wishes to do so.

8. Direct service is permitted. No order as to costs.

(D. M. DESAI,J) VATSAL